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February 17, 2025

AS AMENDED

SENATE BILL NO. 402

By: Stewart

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[ commercial driver training - instructor's licenses
- rules -
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emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 804, as amended by Section 28, Chapter 310, O.S.L. 2023 (47 O.S. Supp. 2024, Section 804), is amended to read as follows:

Section 804. A. No person shall act as an instructor unless such person applies for and obtains from Service Oklahoma a license in the manner and form prescribed by Service Oklahoma.

B. Rules promulgated by Service Oklahoma, in conjunction with the Department of Public Safety, shall state the requirements for an instructor's license, including requirements concerning moral character, physical condition, knowledge of the courses of instruction, motor vehicle laws and safety principles and practices, previous personnel and employment records, and such other matters as Service Oklahoma, in conjunction with the Department of Public Safety, may prescribe for the protection of the public.

1 C. Rules promulgated by Service Oklahoma under the provisions
2 of subsection B of this section shall require an applicant for the
3 license to have three (3) years of verifiable commercial driving
4 experience within ten (10) years of the application date or three
5 (3) years of verifiable experience as an instructor at a commercial
6 driver training school within ten (10) years of the application
7 date.

8 SECTION 2. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

12 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
13 February 17, 2025 - DO PASS AS AMENDED
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